

		documents and the delay in production has been due to the fact that Defendant has had to dedicate substantial time and resources to figuring out how to efficiently and cost-effectively review and produce these documents. (Levine Decl., ¶ 4.) Defendant states it is working with a vendor and has narrowed the pool of possible responsive documents to 213,000. (Levine Decl., ¶ 7.) Defendant has now produced 3,809 documents and intends to continue to produce documents on a rolling basis with an additional production planned for Thursday, May 14, 2026. (Opp., 4:19-21.) Since Defendant is producing documents on a rolling basis it is unclear which of the 82 requests remain in dispute. Since Defendant has shown it is working towards producing responsive documents, the court finds further conferences between counsel would be productive. Therefore, the parties are ordered to engage in additional attempts to meet and confer regarding the issues that remain in dispute, including a telephonic or in-person conference (not email). No later than 9 court days prior to the continued hearing, the parties are to file a Joint Statement which shall (1) describe the parties' attempts to meet and confer pursuant to this order, (2) identify each discovery request that remains in dispute, and (3) each party's position on the discovery request that remains in dispute. Plaintiff to give notice. MOTION NO. 2: The Application of Shamoor Anis to Appear Pro Hac Vice for defendants Brent Smith and Millrock Investment Fund 1, LLC is GRANTED. Moving attorney has satisfied all the requirements of California Rules of Court, Rule 9.40. Moving attorney to give notice.
2	24-01401853 <i>Anderson vs. Upward</i>	Motion to Compel Further Responses to Form Interrogatories Defendants Richard Upward, Shirlene Upward and Katherine Mojarro's Motion to Compel Further Responses to Form Interrogatories, and Request for Monetary Sanctions is DENIED. A party may move to compel further responses to interrogatories where the party deems the responses are evasive or incomplete, an exercise of the option to produce documents is unwarranted or the required specification of those documents is inadequate, and/or an objection in the response is without merit or too general. (Code Civ. Proc. § 2030.300(a); see <i>Best Products, Inc. v. Sup.Ct. (Granatelli Motorsports, Inc.)</i> (2004) 119 Cal.App.4th 1181, 1189-90 [motion to compel proper to challenge "boilerplate" responses].) The motion must be served within 45 days after verified responses or any verified supplemental responses are served, unless the parties agree in writing to extend the time. (Code Civ. Proc., § 2030.300, subd. (c).) The motion must be accompanied by a separate statement (Cal. Rules of Court, rule 3.1345(c).) The motion must also be accompanied by a

declaration stating facts showing a “reasonable and good faith attempt” to resolve informally the issues presented before filing the motion. (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1); *Golf & Tennis Pro Shop, Inc. v. Sup.Ct. (Frye)* (2022) 84 Cal.App.5th 127, 138, fn. 9 [declaration must accompany notice of motion, along with all other documents supporting notice of motion].)

If a timely motion has been filed, the responding party bears the initial burden of justifying any objection or failure fully to answer the interrogatories. (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-21; *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.)

The Court finds the moving parties have complied with the above requirements. The motion was timely filed on 4/30/26 pursuant to the parties’ agreement to extend the motion deadline. (See Barg Decl., ¶¶ 5-7, Ex. 6.) The motion is accompanied by a separate statement and a meet-and-confer declaration showing a reasonable and good faith attempt” to resolve this dispute informally.

Defendants Richard Upward (“Richard”), Shirlene Upward (“Shirlene”) and Katherine Mojarro (“Katherine”) (collectively, “Defendants”) move to compel further responses to Form Interrogatory, Set One, (“FROG”) No. 17.1(b)-(d) with respect to Request for Admission, Set One, (“RFA”) Nos. 3-5, 9, 12-15 and 19 (propounded by Richard and Shirlene); and 17.1(b)-(d) with respect to RFA Nos. 5-8, 11, 14-17 and 21 (propounded by Katherine). Defendants served duplicative RFAs on Plaintiff; however, Richard and Shirlene (collectively, the “Upwards”) used the same numbering sequence, while Katherine used a different numbering scheme. (Beg Decl., ¶¶ 2, 3, Exs. 2a-2c.)

Plaintiff denied the RFAs at issue, which ask her to admit she is aware no facts indicating Defendants: obtained any right to any property of Decedent for a wrongful use (Upwards RFA 3/Katherine RFA 5); obtained any right to any property of Decedent with intent to defraud Decedent (Upwards RFA 4/ Katherine RFA 6); exerted undue influence over Decedent at any time (Upwards RFA 5/Katherine RFA 7); acted fraudulently to have Decedent change her beneficiary designation on an IRA she owned (Upwards RFA 9/Katherine RFA 11); at any time requested that Decedent change her IRA beneficiary designation (Upwards RFA 12/ Katherine RFA 14); acted with fraud toward Decedent (Upwards RFA 13/ Katherine RFA 15); acted with malice toward Decedent (Upwards RFA 14/ Katherine RFA 16); or acted with oppression toward Decedent (Upwards RFA 15/Katherine RFA 17). The last RFA at issue asks Plaintiff to admit she is aware of no facts that she is still entitled to possession of Decedent’s IRA (Upwards RFA 19/Katherine RFA 21). (Beg Decl., ¶ 4, Exs. 4a-4c.)

Interrogatory 17.1 required Defendants to disclose the facts, persons with knowledge, and documents supporting each RFA response that was not an unqualified admission. With respect to the RFAs at issue, Plaintiff provided the same response to No. 17.1(b) regarding the facts supporting the denial: “Objection. Plaintiff objected to this request on

		the grounds it is vague, ambiguous, and unintelligible as phrased. Without waiving said objections, Plaintiff responds as follows: Pending further investigation and discovery, Plaintiff does not have any medical records documenting any diagnosed mental capacity issues. However, decedent was very ill and bed ridden requiring 24/7 care and was dependent and susceptible to undue influence. From the records received from Fidelity there were two purported beneficiary changes on or about January 7, 2022. Thereafter the account was restricted and further purported beneficiary changes were submitted on October 14, 2023.” (Beg Decl., ¶ 4, Exs. 3a-3c.) Defendants contend the response is evasive and non-responsive. The Court disagrees. Plaintiff provided responses identifying facts, persons with knowledge, and supporting documents for each request at issue. Although the responses are repetitive and rely on generalized assertions, Interrogatory 17.1 requires disclosure of the factual basis for a denial, not that the response be detailed, supported by extensive evidence or even persuasive. The responses, though minimal, do not warrant further responses. Plaintiff contends she provided all information available at the time the responses were served on 11/4/25. Defendants provide no evidence to the contrary. The parties’ discussion about additional Fidelity documents that Defendants received pursuant to their subpoena that Plaintiff did not also receive is immaterial. There is no evidence that Plaintiff received those documents before her responses were due. In fact, the parties appear to agree that Plaintiff ultimately received those documents in April 2026, which is long after Plaintiff served her responses. (See Shaver Decl., ¶¶ 7-10, Exs. D-F; Beg Decl. iso Reply, ¶ 6.) The motion is denied.
3	22-01263671 Chavez vs. Prime Construction Group Inc.	Motion to Enforce Settlement Plaintiff Cesar Chavez’s Motion to Enforce Settlement Agreement is DENIED. Plaintiff moves pursuant to Code of Civil Procedure section 664.6 to enforce the parties’ Settlement Agreement and enter judgment against defendants Prime Construction Group, Inc., Joe Manoukian, Joe Manoukian dba JM Floors Décor, and JM Flooring Concepts (collectively, Defendants) in the amount of \$17,000 plus 10% interest from the date of breach. On 3/19/26, the Court continued the hearing on this motion to allow Plaintiff more time to file a Supplemental Brief by April 9, 2026 close of business. (ROA 153.) Defendants were allowed to file an opposition by April 23, 2026 close of business. (ROA 153.) The parties timely did so.